UNITED STATES BANKRUPTCY COURT
NORTHERN DISTRICT OF OKLAHOMA

In re: JOHN QUINCY EXAMPLE, Debtor.	Case No. 26-10000-R Chapter 7

Motion to Avoid Judicial Lien Under 11 U.S.C. § 522(f), With Memorandum of Law,

And Notice of Opportunity for Hearing

NOTICE OF OPPORTUNITY FOR HEARING

Your rights may be affected. You should read this document carefully and consult your attorney about your rights and the effect of this document. If you do not want the Court to grant the requested relief, or you wish to have your views considered, you must file a written response or objection to the requested relief with the Clerk of the United States Bankruptcy Court for the Northern District of Oklahoma, 224 South Boulder, Tulsa, Oklahoma 74103 no later than 14 days from the date of filing of this request for relief. You should also serve a file-stamped copy of your response or objection to the undersigned movant/movant's attorney [and others who are required to be served] and file a certificate of service with the Court. If no response or objection is timely filed, the Court may grant the requested relief without a hearing or further notice. The 14 day period includes the three (3) days allowed for mailing provided for in Fed. R. Bankr. P. 9006(f).

The moving party shall calculate the appropriate response time. If a response time is prescribed by applicable statute, rule, or order, the moving party shall add to the prescribed response time unless service is accomplished by hand delivery, the three (3) days required for mailing under Bankruptcy Rule 9006(f). If a response time is not prescribed by applicable statute, rule, or order, the response time shall be fourteen (14) days, which includes the three (3) days required for mailing under Bankruptcy Rule 9006(f).

I. RELIEF REQUESTED

Debtor John Quincy Example ("Debtor") moves under 11 U.S.C. § 522(f)(1)(A) for an order avoiding the judicial lien held by Sample Creditor Bank ("Creditor") on Debtor's residence at 1234 Example Avenue, Tulsa, Oklahoma (the "Property"), to the extent the lien impairs Debtor's exemption in the Property. The lien is a judgment lien recorded in the records

of Tulsa County, Oklahoma, on account of a money judgment entered against Debtor in 2024.

This motion is brought as a contested matter under Fed. R. Bankr. P. 4003(d) and 9014.

II. BACKGROUND

Debtor filed a voluntary petition under chapter 7 of title 11 on March 3, 2026. Debtor's schedules list the Property with a value of $150,000. A first mortgage held by a third party secures a debt of approximately $120,000. Debtor claims a homestead exemption in the Property, in the amount of $50,000, under 11 U.S.C. § 522(b) and applicable Oklahoma law.[1]

Creditor's judgment lien attaches to the Property and secures a claim of approximately $48,000. The lien was recorded on June 9, 2024. No party has objected to Debtor's exemption claim, and the time to do so has passed.

III. ARGUMENT

A. Legal Standard

A judicial lien is a lien obtained by judgment, levy, sequestration, or other legal or equitable process or proceeding. 11 U.S.C. § 101(36). Creditor's lien arose from a money judgment entered against Debtor and recorded against the Property, and it is therefore a judicial lien within the meaning of the Bankruptcy Code.

Section 522(f)(1)(A) allows a debtor to avoid a judicial lien on an interest of the debtor in property to the extent the lien impairs an exemption to which the debtor would otherwise be entitled. The statute applies only to a lien that attaches to an interest the debtor could have

[1] Debtor will support the value stated in the schedules with a declaration of value at or before any hearing on this motion. The declaration is not attached and is not part of the motion as filed.

exempted, and only to the extent of the impairment that the statute defines. The motion is therefore limited to the amount of impairment, and not to the full amount of the lien unless the impairment is at least as large.

B. Section 522(f)(2)(A) Governs the Amount of the Avoidance

Section 522(f)(1)(A) permits a debtor to avoid a judicial lien on an exempt property to the extent the lien impairs the exemption. Under 11 U.S.C. § 522(f)(2)(A), the lien impairs the exemption to the extent that the sum of three amounts exceeds the value the debtor would have in the property absent any lien. The three amounts are the lien itself, all other liens on the property, and the amount of the exemption claimed.

1. The Computation Uses the Schedules

Applying the formula to the figures above, the sum of the three amounts is $218,000: the $48,000 judgment lien, the $120,000 mortgage, and the $50,000 exemption. The value of the Property absent liens is $150,000. The impairment is therefore $68,000, which exceeds the $48,000 judicial lien.

Because the impairment is greater than the lien, the lien impairs the exemption in its entirety. The Court should avoid the lien in the full amount of $48,000, plus any interest and costs that the Court determines are secured by the lien.

C. The Motion Is Timely and Properly Brought

No other lien on the Property is a judicial lien that Debtor seeks to avoid by this motion, and the first mortgage is not affected by the relief requested. The relief is requested under 11 U.S.C. § 522(f)(1)(A), which permits avoidance of a judicial lien on an exempt property without regard to the amount of the lien.

1. Procedure

A motion to avoid a lien under § 522(f) is a contested matter, governed by Fed. R. Bankr. P. 9014, and is commenced by motion under Fed. R. Bankr. P. 4003(d). Debtor has served the motion on Creditor and the other parties identified in the certificate of service below, and has complied with Local Rule 9013-1(B) by including the notice of opportunity for hearing above.

IV. CONCLUSION

Debtor requests that the Court enter an order:

(a) avoiding the judicial lien of Sample Creditor Bank on the Property, in the amount of $48,000, plus any interest and costs the Court determines are secured by the lien, under 11 U.S.C. § 522(f)(1)(A);

(b) directing Creditor to file a release of the lien in the records of Tulsa County, Oklahoma, within fourteen days of entry of the order; and

(c) granting such other and further relief as the Court deems just and proper.

Dated: October 14, 2026

Respectfully submitted,

SAMPLE LAW FIRM, PLLC

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CERTIFICATE OF SERVICE

I certify that on October 14, 2026, I served a true and correct copy of the motion and notice, by first-class United States mail, postage prepaid, on the parties listed below. Parties registered to receive electronic notice through the Court's CM/ECF system were served by the Notice of Electronic Filing (LBR 5005-1(E)).

Sample Creditor Bank, Attn: Collections Department, 200 Example Plaza, Tulsa, Oklahoma 74119

Office of the United States Trustee, 224 South Boulder, Suite 225, Tulsa, Oklahoma 74103

/s/ Alex Sample
Alex Sample